EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Applications nos. 23818/04 and 42665/06
SROO SUTYAZHNIK
against Russia

The European Court of Human Rights (Third Section), sitting on 24 September 2019 as a Committee composed of:

Alena Poláčková, *President,*
Dmitry Dedov,
Gilberto Felici, *judges,*
and Stephen Phillips, *Section Registrar,*

Having regard to the above applications lodged on 19 May 2004 and 7 October 2006 respectively,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

THE FACTS

1. The applicant in the applications 23818/04 and 42665/06 is a non-profit public association SROO Sutyazhnik ("applicant association"). It was represented before the Court by its president, Mr S. I. Belyayev.

2. The Russian Government ("the Government") were represented initially by Mr G. Matyushkin, the Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr M. Galperin.

A. The applicant association's registration as a legal entity

3. The applicant association was registered on 29 August 1994 by the Sverdlovsk Regional Justice Department of the Ministry of Justice of the Russian Federation ("Justice Department"). In 1995 a new Federal Law on non-governmental organisations came into force. The Law required that all NGOs established before 1995 be re-registered before 1 July 1999.

4. Following the refusal of the Justice Department to re-register the applicant association, it challenged the refusal before the courts of general jurisdiction. On 10 April 2002 the Kirovskiy District Court of Yekaterinburg ruled in favour of the applicant association and ordered re-registration by the Justice Department. The Justice Department appealed.

5. The applicant association on 26 June 2002 submitted the documents necessary for re-registration to the Justice Department. By the letter of 24 July 2002 the Justice Department informed the applicant association that the judgment in its favour could not be enforced because an appeal against it was pending.

6. In the meantime on 17 May 2002 the Government of the Russian Federation issued a decree, which transferred the management of the register of legal entities from the regional justice departments to the Ministry of Taxation and its territorial bodies from 1 July 2002.

7. On 1 August 2002 the Sverdlovsk Regional Court, sitting as an appeal court, upheld the District Court's judgment of 10 April 2002.

8. On 19 August 2002 SROO Sutyazhnik was incorporated in the register of legal entities by the Ministry of Taxation as a legal person registered before 1 July 2002.

B. Enforcement of the judgement of 10 April 2002

9. On 2 September 2002, which is two weeks after the applicant association's registration by the Ministry of Taxation, the Kirovskiy District Court of Yekaterinburg issued a writ of execution ordering the Justice Department to re-register the applicant association.

10. On 5 November 2002 the president of the applicant association, Mr S. I. Belyayev, forwarded the writ of execution to the Bailiffs' Service for enforcement. He attached to his letter the new articles of association of the applicant association and also informed the bailiffs that the remainder of the documents necessary for re-registration had been already filed with the Justice Department.

11. On 23 December 2002 the Bailiffs' Service terminated the enforcement proceedings. It was stated that the Justice Department was unable to comply with the judgment because from 1 July 2002 the registration of legal entities was entrusted to the Ministry of Taxation and its territorial bodies.

12. The applicant association lodged an action alleging unlawfulness of termination of enforcement proceedings by the Bailiffs' Service. On 1 March 2004 the Kirovskiy District Court of Yekaterinburg ruled in its favour in part and found termination of the proceedings to be unlawful. The judgment was upheld by the Sverdlovsk Regional Court on 10 June 2004.

13. Upon a number of subsequent requests of SROO Sutyazhnik on 20 October 2004 the Justice Department issued an order to re-register the

applicant association, annul the registration certificate of 1994, and transfer the file to the Ministry of Taxation for incorporation of the data into the register of legal entities.

14. On 27 October 2004 the Ministry of Taxation informed the Justice Department that the applicant association was incorporated in the register of legal entities on 19 August 2002 and that the Federal Law on registration of legal entities of 2001 did not allow inserting a specific "re-registration record" in the register.

15. On 10 November 2004 the Justice Department informed SROO Sutyazhnik that it fully enforced the judgment. The applicant association disagreed and requested issuance of a registration certificate. The Justice Department on 16 December 2004 replied that issuance of a re-registration certificate was not possible, because no relevant record was inserted in the register of legal entities.

16. SROO Sutyazhnik challenged in court the inaction of the Justice Department concerning issuance of the certificate. On 18 March 2005 the Kirovskiy District Court of Yekaterinburg ruled against the applicant association. The District Court reasoned that SROO Sutyazhnik was effectively re-registered on 19 August 2002, no inaction of the state bodies could be established, and that the plaintiff failed to demonstrate that absence of the registration certificate impeded the daily operation of the association. The judgment was upheld on 30 August 2005 by the Sverdlovsk Regional Court.

17. In the meantime, on 11 May 2005 the applicant association requested and received the certificate of state registration from the Justice Department.

C. Attempted re-organization of the applicant association

18. On 28 February 2003 the general assembly of SROO Sutyazhnik decided to adopt changes to the articles of association and to re-organize itself into an international public association, because its representation was established and registered in the State of New York.

19. On 19 March 2003 an application was forwarded to the Ministry of Justice along with supporting documents, including 1994 versions of the articles of association and the registration certificate, and the certificate of 19 August 2002 verifying incorporation of SROO Sutyazhnik in the register of legal entities.

20. On 29 April 2003 the Ministry of Justice informed the applicant association that the requested changes to the articles of association and the legal status of association may not be recorded, because it failed to supply the articles of association and registration certificate issued after 1 July 1999. Further the letter stated that the applicant association was due to be liquidated.

21. SROO Sutyazhnik challenged the decision of the Ministry of Justice in court and sought an order to proceed with registration of an international public association and incorporation of the relevant records in the register of legal entities by the territorial body of the Ministry of Taxation.

22. On 26 December 2005 the Tverskoy District Court of Moscow ruled against the applicant association. The District Court reasoned that SROO Sutyazhnik at the moment it filed an application with the Ministry of Justice in 2003 did not have the articles of association adopted after 1 July 1999 and registration certificate issued after the same date. Effectively, these documents were available for filing after 11 May 2005, and thus the Ministry of Justice properly concluded that the application for reorganization into an international public association could not be accepted.

23. On 11 April 2006 the Moscow City Court upheld the judgment on appeal.

24. There is no evidence that the applicant association had further attempted to reorganize itself into an international public association.

COMPLAINTS

25. The applicant association complained under Article 6 § 1 of the Convention about lengthy non-enforcement of the judgement ordering its re-registration.

26. Further, the applicant association complained under Article 11 in conjunction with Article 6 § 1 of the Convention that the lengthy non-enforcement of the above-mentioned judgment unduly interfered with the freedom of association by preventing it from obtaining the status of a registered association and precluded reorganization into an international public association.

27. Lastly, the applicant association submitted certain other complaints under Articles 6 and 11 of the Convention.

THE LAW

28. Having regard to the similar subject matter of the applications and the fact that they had been lodged by the same applicant association, the Court finds it appropriate to examine them jointly in a single decision.

29. The Government in their observations acknowledged that on its face the judgement of the Kirovskiy District Court of Yekaterinburg of 10 April 2002 was enforced only on 5 May 2005. However, they maintained that the applicant association had not suffered any significant disadvantage. The Government highlighted that SROO Sutyazhnik was registered in the list of legal entities by the Ministry of Taxation on 19 August 2002 and that throughout the relevant period there had been no *de jure* or *de facto*

hindrance of the applicant association's activities. In part concerning attempted re-organization of the applicant association as an international public association, they stated that the refusal of the national authorities was based on reasonable requirements of the domestic law and that the applicant association never attempted to re-organize itself since 2006, while nothing prevented it from doing so.

30. The applicant association disagreed. In their opinion they had suffered from attempted liquidation of the organization. They maintained that between July 1999 and 11 May 2005 they were unable to receive grants from international funds and could not re-organize as an international public association.

31. The Court will fist consider whether the applicant association suffered a significant disadvantage from non-enforcement of the judgement of the Kirovskiy District Court of Yekaterinburg between April 2002 and May 2005.

32. Under Article 35 § 3 (b) of the Convention the Court should examine whether the applicant suffered a significant disadvantage, whether respect for human rights would in any event require an examination of the case, and whether the case was duly considered by a domestic tribunal (see among others *Korolev v. Russia* (dec), no. 25551/05, 1 July 2010; *Rinck v. France* (dec.), no. 18774/09, 19 October 2010; *Kiousi v. Greece* (dec.), no. 52036/09, 20 September 2011; and *Savu v. Romania* (dec.), no. 29218/05, 11 October 2011).

33. The Court notes at the outset that no formal hierarchy exists between the three elements of Article 35 § 3 (b) mentioned above. However, the question of whether the applicant has suffered a "significant disadvantage" is at the core of this admissibility criterion (see among others *Ladygin v. Russia* (dec.), no. 35365/05, 30 August 2011), while the remaining two elements are intended to be safeguard clauses (see Explanatory Report to Protocol No. 14, CETS No. 194, § 81-82).

34. The general principle *de minimis non curat praetor* underlies the logic of Article 35 § 3 (b), which strives to warrant consideration by an international court of only those cases where violation of a right has reached a minimum level of severity. The applications concerning violations real from a legal standpoint, but reasonably insignificant outside of formalistic framework, do not merit European supervision (see *Korolev v. Russia,* cited above, and *Adrian Mihai Ionescu v. Romania* (dec.), no. 36659/04, 1 June 2010). The assessment of this minimum level is, in the nature of things, relative and depends on all the circumstances of the case (see *Ladygin v. Russia*, cited above).

35. The severity of a violation should be assessed taking account of both the applicant's subjective perceptions and what is objectively at stake in a particular case (see among others *Holub v. the Czech Republic* (dec.), no. 24880/05, 14 December 2010, and *Burov v. Moldova* (dec.),

no. 38875/03, §§ 26-29, 14 June 2011). In certain specific circumstances an issue otherwise insignificant may be a fundamental question of principle for an individual (see *Giuran v. Romania*, no. 24360/04, § 22, 21 June 2011). Whether an issue indeed constitutes a question of principle or is otherwise important for an individual needs to be ascertained by the Court within the context of a specific case.

36. Turning to the present case the Court notes that formally it took the national authorities three years to enforce the judgment of the enforcement of the Kirovskiy District Court of Yekaterinburg of 10 April 2002. However, the Court notes that the focal point of the legal dispute resolved by that judgment had been re-registration of the applicant association under the new legislative framework. This goal was evidently achieved by the applicant's association registration in the list of legal entities by the Ministry of Taxation on 19 August 2002. Nothing in the parties' submissions or the documents in the case-file demonstrates that the applicant association encountered any real difficulties in its operation, except for rather speculative claim of not being able to receive grants from international funds. It appears that nothing was objectively at stake for the applicant association in the enforcement of the judgment of 10 April 2002.

37. The Court concludes that while any possible violation of Articles 6 and 11 of the Convention in this regard could exist from a purely legalistic and formalistic standpoint, it had been reasonably insignificant and therefore does not merit European supervision. Nothing in the available material demonstrates that the respect for human rights requires further examination of this case or that the applicant association had been denied justice by the domestic tribunals.

38. Accordingly, the applicant association had not suffered any significant disadvantage in connection with the complaints under Articles 6 and 11 of the Convention about lengthy non-enforcement of the judgment of 10 April 2002. Therefore, it must be declared inadmissible under Article 35 §§ 3 (b) and 4 of the Convention.

39. The applicant association further submitted a complaint under Article 11 in conjunction with Article 6 § 1 of the Convention that the national authorities precluded its reorganization into an international public association. In connection with this complaint the Court observes that the refusal of reorganization was based on the applicant association's failure to provide the authorities with the articles of association adopted after 1 July 1999 and a registration certificate issued after the same date. In the Court's opinion the obligation to produce these documents does not appear to be excessive, unreasonable or prejudiced. It must be also noted that after these documents became available for filing after 11 May 2005 the applicant association did not further attempt to reorganize itself into an international public association, while nothing prevented it from doing so. Accordingly,

the Court concludes that this complaint is manifestly ill-founded and must be rejected under Article 35 §§ 3 (a) and 4 of the Convention.

40. In respect of other complaints of the applicant association under Articles 6 and 11 of the Convention, the Court, having regard to the available material, concludes that they are also manifestly ill-founded and must be rejected under Article 35 §§ 3 (a) and 4 of the Convention.

For these reasons, the Court, unanimously,

Decides to join the applications;

Declares the applications inadmissible.

Done in English and notified in writing on 17 October 2019.

Stephen Phillips
Registrar

Alena Poláčková
President